Frame Agreement

Vattenfall PowerPoint Design and Production Services

BETWEEN

Vattenfall AB

AND

Background AB

Period of Agreement: 01-06-2023 – 31-05-2025
Price validity period: 01-06-2023 – 31-05-2025

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Confidentiality: C2 - Internal

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This Frame Agreement is between:

Background AB (0rg. 556848-5493) organised under the laws of Sweden, with registered address, Slaggatan21, 791 70, Falun, duly represented by Ann-Charlotte Eriksson, Agency Manager, hereinafter referred to as "Supplier";

and

Vattenfall AB, organized under the laws of Sweden, with registered address, Evenemangsgatan 13, Solna, Sweden and postal address 169 92 Stockholm, Sweden duly represented by Marco Scheurwater, Procurement Director and Åsa Jamal, Senior Vice President of Communications, hereinafter referred to as "Purchaser"

Supplier and Purchaser, respectively, individually, or both collectively, as applicable, are in this Frame agreement referred to as a Party/the Parties.

WHEREAS

(A) The business of Supplier is, inter alia, to provide PowerPoint Design and Production Services

(B) Purchaser desires to obtain PowerPoint Design and Production Services from Supplier

(C) Supplier agrees to provide PowerPoint Design and Production Services on the terms and conditions as set out in this agreement.

NOW THEREFORE, it has been agreed as follows:

§0 Definitions

For the purpose of this Frame Agreement, the following definitions shall apply:

Party
Either the Supplier or the Purchaser.

Purchaser
Vattenfall AB

Supplier
Background AB

The Parties
Background AB and Vattenfall AB jointly

Frame Agreement
This document and all appendices.

Assignment Agreement
The Parties' written agreement regarding terms and conditions for an individual assignment. Note that terms and conditions in this Frame Agreement are superior to terms and conditions in Assignment Agreements.

Lump sum payment
The agreed sum that constitutes the remuneration the Purchaser shall pay to the Supplier for the services provided under an Assignment Agreement, irrespective of the expenses the latter has incurred in respect of the assignment.

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Ceiling Price
The agreed amount in the case of remuneration on a current account basis, which constitutes a limitation of the total payment to the Supplier in accordance with the agreed payment principles, irrespective of the fact that the Supplier's expenses in connection with the assignment may be higher.

Deliverable
Deliverable means an item, whether documentation, services or otherwise, to be delivered or supplied by the Supplier under an Assignment Agreement.

Subsidiary
Subsidiary means in relation to any other person, an entity of which that person has direct or indirect control or owns directly or indirectly more than 50% of the voting capital or similar right of ownership. For this purpose "control" means the power to direct the management and the policies of the entity either through ownership or of voting capital, by contract or otherwise.

§1 Scope

This Frame Agreement regulates the conditions for ordering an assignment and, together with the conditions in the Assignment Agreement it constitutes a complete agreement for Supplier assignments.

This Frame Agreement applies to Vattenfall AB (the Purchaser) with all subsidiaries and affiliated companies.

This Frame Agreement applies to Background AB (the Supplier) with all subsidiaries and affiliated companies.

Work to be carried out by the Supplier shall be ordered in writing by the Purchaser and acknowledged by the Supplier.

This Framework Agreement covers the delivery of PowerPoint Design and Production Services for the Vattenfall staff function Communications on local, regional and international level, that can be reused across markets in Europe to the all Purchaser's places of operation.
The Purchaser will commission the Supplier to deliver PowerPoint Design and Production Services (hereinafter referred to as the "Services"); the Supplier will accept said Services, for which the Parties set out in this Framework Agreement the specific conditions that will also apply to each further assignment under any name whatsoever between the Parties.
Services included are defined in Appendix 2

The Purchaser is entitled to use the stipulations of this Framework Agreement for his own purposes and for the purposes of its respective direct or indirect holding companies, irrespective of the size of the holding, especially also for purposes of the companies affiliated to Vattenfall.

The Purchaser does not guarantee any specific volume of purchase

The Supplier undertakes, on behalf of the Purchaser to carry out specified assignments regarding stakeholder management.

The Supplier may appoint sub-Suppliers with the written consent of the Purchaser. The Supplier shall always be responsible for the work of sub-Suppliers as though for his own work. The Purchaser is entitled, on reasonable grounds, to request replacement of named employees of the Supplier following consultation with the latter.

The Frame Agreement in no way limits the right of the Purchaser to appoint other suppliers of PowerPoint Design and Production Services within the same area of operations or to use a procurement procedure for individual assignments nor does it provide for any obligation of Purchaser to order any assignment from Supplier. The Parties declare expressly that the present legal relationship (including any Assignment Agreement entered into under this Frame Agreement) is not an employment contract.

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Orders fulfilment
The Purchaser shall give the Supplier details of the orders, its objectives and its requirements in terms of the activities through Briefings. Where requested to do so by the Supplier, the Purchaser shall supply such further information as the Supplier deems useful or necessary for the planned activities.

The Work shall be delivered in accordance with the Purchase Order and the Customer's reasonable expectations for the Work.
Delivery shall by confirmed in writing by the Supplier.

The services to be delivered by the Supplier set out in Appendix 2, is called the Assignment. The Assignment shall be performed within the time schedule agreed by the Parties. This agreement or the specification may be modified only by a written document duly signed by the parties and referencing this agreement.

The Parties shall appoint one contact person each that can make binding decisions regarding the Assignment. These persons shall have the authority to make decisions within the boundary of this Frame Agreement.

§2 Contract appendices

For assignments in accordance with this Frame Agreement, the following documents shall apply. If the documents contain mutually conflicting information, they shall apply in the following order

- This Frame Agreement
- Appendix 1: Confidentiality
- Appendix 2: SLA – Services included and remuneration (including net price list)
- Appendix 3: Vattenfall's Code of Conduct for Suppliers
- Appendix 4: Self Declaration

The documents are meant to supplement each other. In the case of incongruity between the Frame Agreement and any of the appendices, the Frame Agreement shall take precedence. The appendices shall take precedence in the order they are listed above. Any other (general) terms and conditions (of sale, purchase) than mentioned in this Frame Agreement shall be of no force and no effect. General terms and conditions of Supplier are not applicable to this Frame Agreement or any Assignment Agreement.

§3 Duration

This Purchase Frame Agreement shall be valid from and including 1-6-2023 until and including 31-5-2025.
The Parties agree to fulfil their obligations as set forth in this Framework Agreement by the times and dates specified below.

The Agreement period starts from:	1-6-2023
The initial period ends:	31-5-2025
The first optional period ends	31-5-2027
The second optional period ends	31-5-2029
The third optional period ends	31-5-2031

The release of an option shall be in writing by the Purchaser and with at least three- months' notice before the end of the previous respective Framework Agreement period.
The Framework Agreement can never be automatically prolonged. When lifting a prolongation option Purchaser will receive a 2% discount.
The Purchaser shall involve the Supplier in discussions regarding scheduling of assignments and inform the Supplier of the preliminary scheduling as soon as such information can be made available. Both Parties shall approve the time scheduling.
Provisions, which by their nature extend beyond the expiration or termination of the Frame Agreement shall continue to be in force until fulfilled or no longer relevant due to their nature.
Termination of this Frame Agreement will not affect submitted Orders. Any conditions set out in this Frame Agreement that are applicable to such Orders shall remain in full force and effect in relation to such Order.

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The validity of this Frame Agreement is under the condition that the decision to assign the Supplier this Frame Agreement has gained legal force i.e. that a reconsideration is not claimed within the period of time prescribed by law or in case a reconsideration is claimed, the decision is not changed by court. Consequently, if reconsideration is claimed and the court is ordering a new procurement to be done, this Frame Agreement will cease to be valid, without any right of compensation for either Party.

§4 Remuneration

Price

Compensation for quoted and agreed Assignment is calculated and determined as in enclosed Appendices.

Assignment

Quoted and agreed in writing Assignments presented are exclusive of VAT, but include all other compensation for all costs in the quoted Assignments including outgoing employer contributions, taxes and other charges that may be payable on the remuneration paid to the provider or what the Supplier pays to their employees.

Changes and additions to the Agreement agreed Assignments shall be agreed in writing in advance by both Parties and the Supplier shall submit fixed price or ceiling price to be approved by the Purchaser.

The Supplier shall be remunerated for his services as follows:

Lump sum payment:	a fixed total price which is agreed upon
Variable payment:	payment on account in accordance with the Price list, Appendix 2

The remuneration levels for the Supplier are fixed throughout the Contract Period. The Purchaser reserves the right, prior to each assignment, to negotiate payment levels.

Sub-Suppliers will be reimbursed on the same principles and conditions as the Supplier. However, invoicing for this shall be effectuated via the Supplier, see §5.

All external costs will be charged by Supplier to Purchaser without any surcharge. Any rebate, commission or discount granted to Supplier by any Sub-Supplier will be reimbursed to Purchaser on a quarterly bases. Free of charge will be any hours spent by the Supplier on reporting and auditing of the contract (i.e. pulling out and summarising data from Marathon, Supplier's business intelligence system).

The prices of variable payment in Appendix 2 are quoted excluding VAT, but include payment for all employer contributions, taxes and other mark-ups that may be incurred on payments made to the Supplier or which the Supplier pays to his employees.

Supplier SPOC will provide Purchaser on a quarterly basis on a report regarding Total agency fee revenue.

§5 Invoicing

Invoices shall be submitted for services performed either monthly or, in the case of a short assignment, when it is completed unless otherwise specified as a Payment Schedule in the Assignment Agreement.

Invoices shall be specified with respect to

- name of the project
- order number for the assignment
- verified costs incurred
- period of time in question
- Purchaser's contact

as well as any sub-items that may occur. All specified items shall meet the requirements of §6.

Purchaser may reject any invoice which does not comply with the required conditions as mentioned in §6.

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Invoices shall also contain details as to whether they concern a sub- or a final invoice.

Invoicing may only be effectuated by the Supplier and the Supplier is thereby fully responsible for the payment of any sub-Supplier(s).

For assignments conducted on a current account basis, invoices shall be accompanied by time sheets attested by the Purchaser.

Travel costs (flights, hotels, taxi, trains and food) will be most cost effective. These costs will be specified by Supplier, and pre-approved by Purchaser.
Local taxi costs made by Supplier between city centres and Purchaser offices in Amsterdam, Berlin, Copenhagen, Hamburg, Helsinki, London, Paris and Stockholm will not be charged by Supplier.
All other costs are included in the price as stated in Appendix 2.

On-site visits will be invoiced by a day (8 hours) – or shorter if that is the case -, even If the workings hours are more than 8 hours a day. Before on-site visits are planned & booked, the Supplier will inform in advance about the total day & hour costs that will be charged for a visit.
If the Supplier works for other clients during these visits, the hour costs for those activities will not be charged to Vattenfall AB.

§6 Payment

Invoices shall be paid 60 days after receipt of a correct invoice. The Supplier shall invoice his service as follows:

- Invoices will be sent after the project is finished and deliverables have been approved by the Purchaser. Charges such as invoicing, administration costs etc. may not be billed.
- In case a project duration > two (2) months, invoices shall be sent monthly, after approval by the Purchaser.
- Invoices Invoices shall be specified with respect to:

	Invoice data/requirements	Explanations
1	Legal Company name	
2	RU (Reporting Unit) in Nordics	
3	Reference person	Preferably e-mail and reference name; mandatory field for non-PO invoices
4	Purchase order number	
5	VAT number of purchasing company	
6	VAT number of the Supplier	
7	Supplier	name and address
8	Bank account of the Supplier	
9	Amount per VAT rate or exemption, unit price exclusive of VAT and discounts/rebates if applicable	Gross amount, net amount
10	10 VAT amount expressed in the national currency of the country where the transaction takes place	
11	VAT percentage	VAT PERCENTAGE at invoice header
12	VAT at line item level	(if several line items accounted)
13	IBAN number and BIC/SWIFT	Mandatory only for EU suppliers
14	Invoice number	

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15	Invoice date	
16	Currency	
17	Corporate identity number	
18	Seat of the board	
19	Quantity and nature of goods or services	
20	Final invoice for down-payments include all previous advanced paid invoices	
	Invoice data/requirements	**Explanations**
21	Invoice addresses:	
	Specified in Purchase order	no. of RU shall be stated in contract
	Documentary proof of acceptance (Acceptance report) to be submitted if required by contract	
	Documentary proof of travel expenses	If applicable
22	Due date	valid for all non PO invoices
23	If the transaction is subject to the reverse charge procedure: “VAT reverse charge	
24	In the case of an exemption (e.g. for intra-Community supplies of goods) , any reference indicating that the supply of goods or services is exempt	

Invoices shall be submitted for services performed, or otherwise in the phases agreed in the relevant Assignment Agreement.

Invoices shall also contain details as to whether they concern a sub- or a final invoice.

Invoicing may only be effectuated by the Supplier and is thereby fully responsible for the payment of any sub-supplier(s) provided that: (i) the Supplier shall invoice the Purchaser for all third party costs (including those of sub-suppliers) approved by the Purchaser that are incurred or to be incurred by the Supplier in connection with the provision of the services ("Third Party Costs"); (ii) the Supplier's fees are exclusive of all Third Party Costs and the Supplier may issue invoices for Third Party Costs only or invoices for Third Party Costs and Supplier’s fees; and (iii) the Supplier shall invoice the Purchaser for Third Party Costs (wherever reasonably practicable) in advance of the third party performing its applicable services and such Third Party Costs shall be paid by the Purchaser to the Supplier: (a) within 30 days of receipt of an invoice from the Supplier; or (b) within such other shorter period as may be necessary such that the Supplier has received the funds in time to meet the Supplier's payment obligations to the relevant third party and in no event shall the Supplier use its own funds for the procurement or payment these Third Party Costs.

If the Assignment is conducted on a current account basis, invoices shall be accompanied by time sheets attested by the Purchaser.

Without prejudice to any other right or remedy that the Supplier may have, in respect of any amounts not paid by Purchaser by the relevant due date:

- the Supplier may require the Purchaser to pay interest on the overdue sum. Any delay interest, shall be billed in accordance at the rate of EURIBOR (12 months) and such penalty shall be levied until the recovery of the amount is made in full; and/or

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- the Supplier may suspend all or part of the services until payment has been made in full and shall be entitled, at its discretion, to revise all relevant deadlines and timeframes accordingly.

Purchaser may withhold payments corresponding to the disputed amount in case of dispute of an invoice or part of an invoice to which it has a bona fide dispute and Purchase shall notify the Supplier in writing of the reasons for such dispute within 10 (ten) days of the applicable invoice received date and pay the undisputed part of such invoice in accordance with this §6 (above). Supplier shall not be entitled to suspend its performance of the obligations where the Purchaser in good faith disputes an invoice or part of an invoice of the Supplier.

Charges such as invoicing, administration costs etc. may not be billed.

Invoices need to be at the Purchaser during the year that the Assignment is executed, at the latest on December 15th.

Any invoice that arrives later than six (6) months after the Assignment has been completed will not be approved for payment if it does not show the proper reasons for such delay.

§7 Staffing & Knowledge Transfer

Supplier personnel are selected on the basis of the type of Assignment to be provided and such personnel shall be approved by the Purchaser before commencement of the Assignment. In this process Supplier undertakes to find and utilise the most appropriate and best resources available and thereby making best possible use of Supplier and its affiliated companies. Where necessary, the Supplier is responsible for making sure that his employees, when carrying out an assignment for the Purchaser, have valid labour and residence permits.

Suppliers working teams are defined in Appendix 2
If there will be a change of persons specified in Appendix 2 (administrative staff excluded) Supplier will involve Purchaser in the recruitment and selection of the replacement team member. If the Supplier and Purchaser fail to agree on new working team member the Purchaser shall have the right to terminate the Framework Agreement.

The Supplier shall ensure an efficient transfer of knowledge during the Assignment to the Purchaser. Transfer of knowledge will not be charged by Supplier.

§8 Audit

The Purchaser related documentation and files of the Supplier are subject to review by the Purchaser or by an auditor acting on behalf of the Purchaser.

Subject to written announcement, the Purchaser is, by means of an auditor, authorized to carry out an audit at the Supplier, during the course of which the Supplier shall endeavour to make available to the auditor in question within a reasonable delay as much detailed information and as many original documents as possible that relate to the Purchaser.
The Purchaser has moreover the right to request project invoice(s) at random for the operator(s) in question. Should the Purchaser request so, the Supplier shall furnish the invoice(s) in question within three working days at most.

§9 Liability for damage

Guarantee
The Supplier is responsible for that the assignment specified in Appendix 2 is carried out in a professional, safe and workmanlike manner with the due observance of customary practice within the sector.

The Supplier is obliged to take those initiatives that may be necessary in order otherwise to obtain required know-how on the assignment and for its implementation.

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Supplier shall fully indemnify Purchaser with respect to claims from third parties in respect of infringements of patents or any other industrial or intellectual property rights belonging to any third parties.

Liability for damage
The Supplier shall be liable for any loss, costs and damages that the Purchaser suffers as a result of the Supplier's actions or omissions.

Limitation of Liability
The Supplier's total liability for damages shall be limited to an amount equivalent to twice the contract value under the applicable assignment.
Any limitation of liability does not apply in case of gross negligence or wilful misconduct. In the case of liability arising from death, fraudulent misrepresentation or injury to persons there shall be no limit of the Supplier's liability.
Damages and losses due to the Supplier's breach of its obligations regarding processing of personal data and secrecy and right of use, copyright and intellectual property rights shall not be subject to the limitation of liability described above in this section.

Liability for Damage to Property Caused by the Supplier
The Supplier shall be liable for any damage to property caused by it. The Supplier's total liability for damage to property caused by its work under the assignment shall be limited to an amount equivalent to twice the contract value.

Liability insurance
The Supplier shall during the term of the Frame Agreement and for three (3) years after it has expired, maintain a valid insurance to cover any liability it may incur under this Frame Agreement and any Assignment Agreements submitted under it. Upon request by the Purchaser the Supplier shall provide an insurance certificate in order to prove its compliance with this section.

The Supplier shall have, and on request present/submit, copies of current insurance policies.

Labour and residence permits
Where necessary, the Supplier is responsible for making sure that his employees, when carrying out an assignment for the Purchaser, have valid labour and residence permits. In the case of foreign employees of the Supplier, for the purpose of assignments on behalf of the Purchaser, requisite permits shall be submitted to the Purchaser's local staff office/function before the employee(s) is / are admitted to the workplace. In the case of longer assignments, it shall be possible for such permits to be presented at least every six (6) months.

Supplier guarantees to Purchaser that it will comply with the social insurance legislation and fiscal legislation and is responsible for remitting all the taxes, social security contributions and other statutory levies that are applicable to an Assignment and indemnifies the Purchaser against any retrospective levies in that respect.

§10 Right of use, Copyright and Intellectual Property Rights

Material and documents produced by the Supplier exclusively for the Purchaser within the Assignment and paid for by the Purchaser, are the property of the Purchaser and shall be handed over to the Purchaser no later than on completion of the assignment. The Purchaser shall have the unrestricted right to use and modify such intellectual property rights within the Purchaser's business. The Supplier may only use such Purchaser's property in assignments for another customer with the written consent of the Purchaser on the form and time of the use and the extent of any financial remuneration to the Purchaser.

Information that is processed via some form of data media shall be processed in accordance with the regulations/instructions that the Purchaser employs with respect, for example, to format, virus etc.

The Supplier warrants that any material developed, procured or supplied under this Frame Agreement is not infringing any patents or any other industrial and intellectual property rights belonging to the

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Purchaser or any third parties. Should such infringement occur, or be likely to occur, Supplier shall at his own risk and expense either ensure that the Purchaser shall be entitled to use the material, or replace it by corresponding material, the use of which does not entail an infringement, or alter the material so that the use of it does not constitute an infringement.

Without prior, written approval of the Purchaser it is forbidden for the Supplier to generate any publicity on work or to publish any (parts of the) work that the Supplier executed related to this Frame Agreement.

After termination of the Agreement Purchaser will inform Supplier on her wish for the Supplier to handover all material to Purchaser. In that case the Supplier will hand over all material produced to Purchaser, without charging any costs.

§11 Personal Data

To the extent the work under an Assignment Agreement involves processing of personal data, such processing shall be carried out in accordance with the obligation of a data controller or a data processor, as applicable, under the applicable data protection legislation governing the relevant data. If this Frame Agreement or any Assignment Agreement entails processing of personal data carried out by the Supplier on the assignment of the Purchaser or any of its subsidiaries or affiliated companies, as applicable, the Supplier is appointed personal data processor.

The Supplier shall at all times adhere to the instructions on processing of personal data from Vattenfall Group stated in the Data Processing Agreement, Standard Contractual Clauses or other written documentation attached to the Frame Agreement. The Supplier shall take the technical and organizational measures needed to protect personal data from unauthorized access, destruction or distortion.

§12 Secrecy

The Supplier shall maintain secrecy regarding the information obtained through the Assignment concerning business activities of the Purchaser, the Assignment as such, the result of the Assignment and other such matters. To further ensure confidentiality the personnel of the Supplier working with the Purchaser shall not participate in any ongoing projects for competitors of the Purchaser.

In performance of its obligations, each Party may have access to confidential information owned or controlled by the other Party. Each Party shall keep all such confidential information in strict confidence and undertakes not to use the confidential information outside the scope of the Frame Agreement or disclose the existence of the Frame Agreement, any Assignment Agreement, any financial information, trade secrets, customer lists or other information which it may from time to time receive or obtain (orally or in writing or in disc or electronic form) as a result of entering into or performing its obligations pursuant to the Frame Agreement or otherwise, relating to any of the Parties, which is not in the public domain unless:

(i) required to do so by law or pursuant to any order of court or other competent authority or tribunal;
(ii) required to do so by any applicable stock exchange regulations or the regulations of any other recognised market place;
(iii) such disclosure has been consented to by the other Party in writing (such consent not to be unreasonably withheld); or
(iv) the information is disclosed to its professional advisers who are bound to such Party by a duty of confidence which applies to any information disclosed.

If a Party becomes required, in circumstances contemplated by (i) or (ii) to disclose any information, the disclosing Party shall use its reasonable endeavours to consult with the other Party prior to any such disclosure.

Upon the disclosing Party's request all confidential information disclosed to the receiving Party shall be returned to the disclosing Party or shall be destroyed according to the disclosing Party's instructions, including any confidential information stored on back-up media or in any other way. The receiving Party

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shall comply with such request within 30 days and shall upon request confirm in writing that it has complied with its obligation.

Supplier shall ensure that any employees of Supplier and any third party to whom confidential information is disclosed hereunder have signed an obligation to treat such confidential information with the same obligation of non-disclosure as that set out herein.

Notwithstanding the above, Purchaser shall be entitled to disclose confidential information within the Vattenfall group.

§13 Force Majeure

Neither Party shall be liable for any loss incurred by the other Party, to the extent that the loss is caused by a Force Majeure Event, however, only to the extent that the suffering Party has used all reasonable endeavours to remove, avoid or overcome such Force Majeure Event without undue delay.
In the event that a Party is prevented from performing its obligations as a consequence of a Force Majeure Event, the performance may be postponed until such time as the impediment no longer exists or can reasonably be overcome. The Party suffering from the above circumstances shall immediately inform the other Party of such circumstances and estimate how long the Party reasonably expects the postponement to last.
In case the performances under an individual assignment are suspended for more than six (6) months due to a Force Majeure event, either Party shall have the right to terminate the assignment by giving the other Party fourteen (14) days' notice hereupon. Neither party shall have any liability to the other in respect of the termination of an assignment as a result of an Event of Force Majeure. However the Supplier shall be entitled to receive payments for all services rendered up to date of termination of the assignment.

§14 Ethical Clause

The Supplier confirms that they acknowledge the Purchaser's Code of Conduct for Suppliers, as amended or adjusted from time to time (the "Code"). The Code valid at the time of Agreement signing for the Seller is attached to this Agreement as Appendix 3.

The Supplier further agrees that it respects and acts according to the principles of the UN Global Compact on which the Vattenfall Code is based and that it has policies, procedures and programs in place to ensure compliance with the principles from the UN Global Compact and national legislation.

Either Party shall be entitled but is not obliged to conduct or have conducted an inspection of the other Party and its Affiliates for the sole purpose of determining compliance with the Code and the UN Global Compact principles including processes to ensure monitoring compliance there of as it relates to the performance of this Agreement (the "Purpose"). Any such inspection shall be made during normal business hours and only at the other party's and its Affiliates offices or operations that are involved in the performance of this Agreement. Either Party is thereby for the Purpose, inter alia, entitled to visit permitted sites, review management systems and interview employees and managers. The inspections may be conducted by the requesting Party or by a reputable third party auditing firm reasonably acceptable to the other Party. Each Party agrees to cooperate to the extent possible and reasonable in order to facilitate the inspection and will use its best endeavours to ensure that its Affiliates do the same. The inspection rights do not encompass access to confidential or proprietary information.

The Purchaser has the right to terminate the Agreement without notice, if the Supplier and/or its Affiliates, offices or operations involved in the performance of this Agreement demonstrably commits or has committed a breach of the Code or the UN Global Compact principles , which is so severe that continuing with the Agreement until the end of its term is reasonably unacceptable, and, in case rectification is possible, if the Supplier and/or its Affiliate do not rectify the non-compliance within a reasonable period of time following a written notification.

For the purpose of this clause14, "Affiliate" shall mean with respect to a Party any entity which is directly or indirectly
(i) controlled by that Party; or
(ii) owning or controlling that Party; or

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(iii) under the same ownership or control as that Party.

§15 Assignment of agreement

In order to be valid, the transfer of this Frame Agreement to another party must be agreed in a supplementary agreement and duly signed by both Parties. Notwithstanding the above, The Purchaser may assign this Frame Agreement to any other company within the group by means of a written notice to the Supplier.

If Supplier is taken over wholly or partially or mergers with a third party, the Purchaser has the right, within 30 (thirty) working days of having learnt of the takeover, to terminate the Frame Agreement and any ongoing assignments with immediate effect, without giving reasons and without judicial intervention.

§16 Amendments and supplements to the Frame Agreement

In order to be valid, amendments, supplements and/or changes to this Frame Agreement shall be made in the form of written supplementary contracts duly signed by the Parties. Unless otherwise agreed, amendments, supplements and/or changes shall not affect Assignment agreements already entered into.

§17 Termination

A Party can immediately cancel this Frame Agreement in writing if the other Party:

- should in essential respects breach one of the conditions of this Frame Agreement and not take measures to fulfil the condition within a reasonable period following a written request to do so (such request shall be sent to the person responsible for this Frame Agreement on the other Party's staff and be signed by a person authorised to sign for the company), or
- has been declared bankrupt, entered into liquidation, stated that it intends to cancel or has actually cancelled its payments, or
- changes its ownership structure in such a way that the preconditions for this Frame Agreement are essentially changed.

§18 Governing Law and disputes

The Frame Agreement and any Assignment Agreements submitted under this Frame Agreement shall be governed by the substantive laws of Sweden, excluding any conflicts of law rules.

Any dispute, controversy or claim arising out of or in connection with this Frame Agreement and any Assignment Agreements submitted under this Frame Agreement, or the breach, termination or invalidity thereof, shall be finally settled by arbitration in accordance with the Arbitration Rules of the Arbitration Institute of the Stockholm Chamber of Commerce. The arbitral tribunal shall be composed of three arbitrators.
Each party shall appoint one of the arbitrators and the Institute shall appoint the chairman. The seat of arbitration shall be Stockholm. The language to be used in the arbitral proceedings shall be English. The proceedings and the documents emanating from the proceedings, the decision included, shall be kept confidential.

Until any dispute, controversy or claim described above has been finally resolved or settled, the Supplier shall continue to perform its obligations in accordance with the reasonable interpretation of Purchaser or any of its subsidiaries or affiliated companies, as applicable. This shall apply until the dispute, controversy or claim has been finally settled.

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Two identical copies of this Frame Agreement have been duly signed by us and mutually exchanged.

Vattenfall AB (publ)
Stockholm, 31 May 2023

.....
Åsa Jamal, Senior Vice President of Communications

Background AB
Falun, 31 May 2023

.....
Ann-Charlotte Eriksson, Agency Manager

Vattenfall AB (publ)
Amsterdam, 31 may 2023

.....
Marco Scheurwater, Procurement Director

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Confidentiality: C2 - Internal

APPENDIX 1: CONFIDENTIALITY AGREEMENT

Separately signed, 29 March 2023

Adobe Acrobat Document

Assently: 2e1f965a42294c9f8de988d933353e4f7995f3952581d7ca0f6515b996e9c25cb4af064ee09b18791f7f46b22eee71f2be7946dcf70fbf738645b3e9171a6d7e
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APPENDIX 2: SLA – SERVICES INCLUDED AND REMUNERATION

AV-SERVICES

1 OVERVIEW

The services that the Supplier shall provide the Purchaser with in accordance with this Framework Agreement are PowerPoint Design and Production Services

Support

To deliver its services, the Supplier shall use the team as described in 4. Any changes in the make-up of this team shall require the purchaser's prior consent.

2. NET PRICE LIST

Purchaser and Supplier have agreed the following charges:

- Project Manager 1.150 SEK/hour
- Art Director 1.150 SEK/hour
- Graphic Designer 1.150 SEK/hour
- Final Art 950 SEK/hour
- Proof 950 SEK/hour

Purchaser & Supplier have agreed upon working with fixed prices for recurring projects:

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BRONS

When you want quick helpwith your existing presentation

With a limited budget or short schedule. We make a simpler review of the layout so that texts and images line up, that it is the right font, colors and margins.

Material: Ready-made material in PowerPoint.

Type of presentation: Suitable for presentations that do not have a high priority but which still need to look ok and be as clear as possible according to given conditions.

Roles: Project Manager & Graphic Designer

Time required: approx. 2 slides per hour

SILVER

When you want your presentation should be clarified and feel professional

More thorough review of an existing presentation. We clarify, simplify and amplify your message with the help of experienced presentation designers.

Material: Existing presentation, script or structure.

Type of presentation: Ex. for sales, pitches, external presentations, training, conferences.

Roles: Project Manager, Art Director & Graphic Designer

Time required: approx. 1-2 hour per slide

GOLD

When you want to elevate your presentation to a whole new level

For presentations for important occasions and meetings or presentations which is used frequently by the entire organization.

Material: We'll create it from scratch together.

Type of presentation: Company presentations, sales, tenders, events, seminars, training courses, lectures etc.

Roles: Project Manager, Art Director & Graphic Designer

Time required: According to estimate after initial workshop where scope and content are nailed down.

EXPRESS

Same as Silver, fixed extra fast design help with a specially assigned project group that works in parallel with high priority delivery.

Time required: approx. 1-2 hour per slide (2 Art Directors work in parallel)

3. OTHER

<u>Travel cost</u>

All travels shall be quoted and approved by the Purchaser.

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Courier Services

If the Supplier engages couriers, because it received the assignment and/or the materials late, these costs are – after written approval of the Purchaser – borne by the Purchaser. The (costs of the) couriers who are employed for foreign orders are also to be borne by the Purchaser. These costs are passed on to the Purchaser with the invoice of the job.

4. WORKING TEAM AND ACCOUNT MANAGEMENT

Account management

a. Supplier shall designate a contact who shall have overall responsibility for managing the Purchaser.

b. Purchaser shall be entitled to have the contact designated by Supplier replaced without incurring any costs.

c. Purchaser's Supplier contacts are:

- Louis ten Dam – Category Manager Marketing Communications – louis.ten.dam@vattenfall.com - +31652599300
- Håkan Frestradius - Senior Group Events Manger – hakan.frestadius@vattenfall.com - +46705565140

d. Supplier shall undertake to acknowledge receipt of the order to Purchaser by email within 24 hours of receiving the order. If other Purchaser personnel place orders with the agency or submit associated requests to the agency, Supplier shall notify Purchaser contacts accordingly within this period.

e. Supplier shall send Purchaser a plan and associated budget within 5 working days of receiving the order.

f. The orders that Purchaser places with Supplier shall be executed by a permanent Supplier's working team member. These teams shall be familiar with Purchaser's organisational structure, habits and house style. Any changes in personnel within the teams shall be notified promptly in writing.

g. Purchaser shall decide who should form part of the team on the basis of CVs and interviews with Supplier personnel. Purchaser shall have the final decision on the composition of the teams. Purchaser shall not withhold its consent in this context without good reason.

h. Deadlines shall be met by 5 pm on the agreed date.

i. If the deadline is not met, any hours spent, where attributable to Supplier, shall be paid for by Supplier.

Supplier's dedicated working team members

Supplier's contacts are:

- Ann-Charlotte Eriksson - Agency Manager – lotta@bkgr.se - +46 735729058

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APPENDIX 3: SUPPLIER CODE OF CONDUCT

Link to Vattenfall,.com: code of conduct for suppliers and partners:
https://group.vattenfall.com/siteassets/corporate/who-we-are/about_us/suppliers/code_of_conduct_for_suppliers_and_partners_april_2022.pdf?_t_id=fZJaCVm52pflijIh7gpMOg%3d%3d&_t_uuid=RvLRp0NMQeWdf0m8a2WYBA&_t_q=supplier+code+of+conduct&_t_tags=language%3aen%2csiteid%3aec6448d4-f3c8-47b9-b9c4-42845a8acf13%2candquerymatch&_t_hit.id=Corporate_Web_Cms_ContentTypes_Media_PdfFile/_ad76c556-b476-40aa-8719-3a3aa1c6234a&_t_hit.pos=1

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Confidentiality: C2 - Internal

APPENDIX 4: SELF DECLARATION

Name of the contract:

Reference of the Employer:

I/we make the following legally binding self-declaration (if applicable at the same time also on behalf of those entities represented by me/us according to the request for participation / offer):

1. The **candidate** is not one of the

persons or companies named in

article 5(k) (1) of the Regulation (EU) No 833/2014, as amended by Article 1 no. 23 of Council Regulation (EU) 2022/576 of 8 April 2022 concerning restrictive measures in view of Russia's actions destabilising the situation in Ukraine,

that <u>have a connection to Russia</u> within the meaning of the provision,

a) by the Russian nationality of the candidate/bidder or the establishment of the candidate/bidder in Russia,
b) the participation of a natural person or an undertaking to which one of the criteria referred to in point (a) applies in the candidate/bidder through the holding of shares of more than 50 %;
c) by acting by the candidates/bidders on behalf of or on the instructions of persons or undertakings to whom the criteria set out in points (a) and/or (b) apply.

2. The undertakings involved **in the contract as subcontractors, suppliers or undertakings whose capacities/capabilities are used by the candidate / bidder to fulfil the minimum requirements**, which account for more than 10 % of the value of the contract, also do not belong to the group of persons referred to in the provision with a connection to Russia within the meaning of the provision.

3. It is confirmed and ensured that, even during the term of the contract**, no undertakings participating as subcontractors, suppliers or undertakings whose capacities/capabilities are used by the candidate/bidder to fulfil the minimum requirements,** which account for more than 10 % of the value of the contract, that do belong to the group of persons referred to in the provision with a connection to Russia within the meaning if the provision, are involved.

_____, as of _____

Signatories

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Article 5k of the Regulation (EU) No. 833/2014 as amended by Art. 1 No. 23 of the Council Regulation (EU) 2022/576 of 8. April 2022 reads as follows:

1. It shall be prohibited to award or continue the execution of any public or concession contract falling within the scope of the public procurement Directives, as well as Article 10, paragraphs 1, 3, 6(a) to 6(e), 8, 9 and 10, Articles 11, 12, 13 and 14 of Directive 2014/23/EU, Article 7 and 8, Article 10 (b) to (f) and (h) to (j) of Directive 2014/24/EU, Article 18, Article 21 (b) to (e) and (g) to (i), Articles 29 and 30 of Directive 2014/25/EU and Article 13 (a) to (d), (f) to (h) and (j) of Directive 2009/81/EC, to or with:

(a) a Russian national, or a natural or legal person, entity or body established in Russia;

(b) a legal person, entity or body whose proprietary rights are directly or indirectly owned for more than 50 % by an entity referred to in point (a) of this paragraph; or

(c) a natural or legal person, entity or body acting on behalf or at the direction of an entity referred to in point (a) or (b) of this paragraph,

including, where they account for more than 10 % of the contract value, subcontractors, suppliers or entities whose capacities are being relied on within the meaning of the public procurement Directives.

2. By way of derogation from paragraph 1, the competent authorities may authorise the award and continued execution of contracts intended for:

(a) the operation, maintenance, decommissioning and radioactive waste management, fuel supply and retreatment and safety of civil nuclear capabilities, and the continuation of design, construction and commissioning required for the completion of civil nuclear facilities, as well as the supply of precursor material for the production of medical radioisotopes and similar medical applications, critical technology for environmental radiation monitoring, as well as civil nuclear cooperation, in particular in the field of research and development;

(b) intergovernmental cooperation in space programmes;

(c) the provision of strictly necessary goods or services which can only be provided, or which can only be provided in sufficient quantities, by the persons referred to in paragraph 1;

(d) the functioning of diplomatic and consular representations of the Union and of the Member States in Russia, including delegations, embassies and missions, or international organisations in Russia enjoying immunities in accordance with international law;

(e) the purchase, import or transport of natural gas and oil, including refined petroleum products, as well as titanium, aluminium, copper, nickel, palladium and iron ore from or through Russia into the Union; or

(f) the purchase, import or transport into the Union of coal and other solid fossil fuels, as listed in Annex XXII until 10 August 2022.

3. The Member State concerned shall inform the other Member States and the Commission of any authorisations granted under this Article within two weeks of the authorisation.

4. The prohibitions in paragraph 1 shall not apply to the execution until 10 October 2022of contracts concluded before 9 April 2022.

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The following documents were signed Wednesday, May 17, 2023

Draft Contract Background Vattenfall.pdf
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SHA-512: 227e64302c3e77c6c9884c4b2a5b0d9bb698b
47271743db919b8181757eef14a956a90d66c452d32aa1
0fb35383022aeb3ef53c1e9d090a34f62770f6c992979

Signatures

5/12/2023 12:25:40 PM (CET)

Åsa Gabriella Eriksson Jamal

asa.jamal@vattenfall.com
+46709415954
Signed with electronic ID (BankID)

5/17/2023 3:31:32 PM (CET)

Marco Scheurwater

marco.scheurwater@vattenfall.com
+31652599196
Signed with SMS

5/12/2023 1:22:42 PM (CET)

Ann-Charlotte Eriksson

lotta@bkgr.se
+46735729058
Signed with electronic ID (BankID)

assently

Signature is certified by Assently

Draft Contract Background Vattenfall

Verify the integrity of this receipt by scanning the QR-code to the left.
You can also do this by visiting https://app.assently.com/case/verify
SHA-512:
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